CITY OF BALTIMORE
ORDINANCE 26-148
Council Bill 26-0193

Introduced by: Councilmember Glover and President Cohen
Cosponsored by: Councilmembers Parker, Dorsey, Conway, Gray, Bullock, Porter, Blanchard, Jones, and Ramos
Introduced and read first time: May 11, 2026
Assigned to: Committee on Legislative Investigations
Committee Report: Favorable, with Amendments
Council action: Adopted
Read second time: September 14, 2026

AN ORDINANCE CONCERNING

Public Nuisances – Illegal Distribution or Manufacture of Cannabis or Controlled Dangerous Substances

~~FOR the purpose of updating the applicability of public nuisance abatement to include certain additional offenses; referring certain public nuisance processes to the Department of Consumer Protection and Business Licensing; defining certain terms; generally relating to public nuisance abatement related to cannabis and controlled dangerous substances; and providing for the effective dates of this Ordinance.~~

~~BY repealing and re-ordaining, with amendments~~
~~Article 19 - Police Ordinances~~
~~Sections 43-1 to 43-4~~
~~Baltimore City Code~~
~~(Edition 2000)~~

~~BY adding~~
~~Article 1 - Mayor, City Council, and Municipal Agencies~~
~~Sections 42-42 to 42-49, to be under the new part designation,~~
~~"Part V. Public Nuisances"~~
~~Baltimore City Code~~
~~(Edition 2000)~~

~~SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That the Laws of Baltimore City read as follows:~~

EXPLANATION: CAPITALS indicate matter added to existing law.
[Brackets] indicate matter deleted from existing law.
Underlining indicates matter added to the bill by amendment.
~~Strike out~~ indicates matter stricken from the bill by amendment or deleted from existing law by amendment.

RULE 12-2 ☘ THIRD READER
PREPARED AND REVIEWED
DEPARTMENT OF LEGISLATIVE REFERENCE
By Ben.Guthorn at 2:57:01 PM, 9/28/2026

~~Baltimore City Code~~

~~Article 19. Police Ordinances~~

~~Subtitle 43. Public Nuisances~~

~~§ 43-1. Definitions.~~

~~(a) *In general.*~~

~~In this subtitle, the following terms have the meanings indicated.~~

~~(b) *Assignation.*~~

~~"Assignation" means an appointment or engagement for prostitution or any act in furtherance of the appointment or engagement.~~

~~(C) *CANNABIS PRODUCT.*~~

~~"CANNABIS PRODUCT" HAS THE MEANING STATED IN § 36-101 OF THE STATE ALCOHOLIC BEVERAGES AND CANNABIS ARTICLE.~~

~~(D) [(c)] *Commissioner.*~~

~~"Commissioner" means the Police Commissioner of Baltimore City or the Commissioner's designee.~~

~~(E) [(d)] *Controlled dangerous [substance.] SUBSTANCE; CDS.*~~

~~"Controlled dangerous substance" OR "CDS" means a substance listed in Schedule I or Schedule II under State Criminal Law Article § 5-402 or § 5-403.~~

~~(F) [(e)] *Controlled paraphernalia.*~~

~~"Controlled paraphernalia" has the meaning stated in State Criminal Law Article § 5-101.~~

~~(G) [(f)] *Crime of violence.*~~

~~"Crime of violence" has the meaning stated in State Criminal Law Article § 14-101.~~

~~(H) [(g)] *Operator.*~~

~~"Operator" means any person who has charge, care, or control of a premises or structure.~~

~~(I) [(h)] *Owner.*~~

~~"Owner" means the person in whose name a premises is recorded in the Land Records of Baltimore City.~~

~~(J) [(i)] *Premises.*~~

~~"Premises" means all or any part of any land, building, or other structure.~~

~~(K) [(j)] *Prostitution.*~~

~~"Prostitution" means the performance of a sexual act, sexual contact, or vaginal intercourse, as these terms are defined in State Criminal Law Article § 3-301, for hire.~~

~~(L) [(k)] *Public nuisance.*~~

~~[(1)] "Public nuisance" means any premises that, on 2 or more separate occasions within a 24-month period, were used:~~

~~(1) [(i)] for prostitution, lewdness, or assignation;~~

~~(2) [(ii)] for illegal adult entertainment;~~

~~(3) [(iii)] by persons who assemble for the specific purpose of illegally administering a controlled dangerous substance;~~

~~(4) [(iv)] for the illegal manufacture or distribution of:~~

~~(I) [(A)] a controlled dangerous substance; [or]~~

~~(II) [(B)] controlled paraphernalia; OR~~

~~(III) A CANNABIS PRODUCT.~~

~~(5) [(v)]for the illegal storage or concealment of a controlled dangerous substance or controlled paraphernalia in sufficient quantity to reasonably indicate under all the circumstances an intent to manufacture, distribute, or dispense:~~

~~(I) [(A)] a controlled dangerous substance; [or]~~

~~(II) [(B)] controlled paraphernalia; OR~~

~~(III) A CANNABIS PRODUCT.~~

~~(6) [(vi)] for gambling;~~

~~(7) [(vii)] for storage or possession of stolen property;~~

~~(8) [(viii)] for storage or possession of unregistered firearms;~~

~~(9) [(ix)] for furtherance of a crime of violence;~~

~~(10) [(x)] by persons who engage in a crime of violence on or near the premises; or~~

~~(11) [(xi)] for criminal gang offenses prohibited under State Criminal Law Article 9, Subtitle 8.~~

~~[(2) Two reports by police officers, written in the regular course of business, of a premises' having been used for activities described in paragraph (1) of this subsection are prima facie evidence that the premises are a public nuisance.]~~

~~§ 43-2. EVIDENCE.~~

~~(A) *IN GENERAL.*~~

~~TWO REPORTS BY POLICE OFFICERS, WRITTEN IN THE REGULAR COURSE OF BUSINESS, OF A PREMISES HAVING BEEN USED FOR ACTIVITIES DESCRIBED IN § 43-1(L) OF THIS SUBTITLE ARE PRIMA FACIE EVIDENCE THAT THE PREMISES ARE A PUBLIC NUISANCE.~~

~~(B) *INCLUDED INFORMATION.*~~

~~A POLICE REPORT ISSUED FOR ACTIVITIES DESCRIBED IN § 43-1(L)(4) AND (5) OF THIS SUBTITLE SHALL INCLUDE A STATEMENT:~~

~~(1) THAT INFORMS THE OWNER, OPERATOR, OR TENANT OF THE PREMISES THAT A SECOND REPORT BY A POLICE OFFICER ALLEGING SUCH A VIOLATION SHALL RESULT IN A HEARING TO DETERMINE IF A PUBLIC NUISANCE EXISTS ON THE PREMISES; AND~~

~~(2) THAT LISTS THE POSSIBLE CONSEQUENCES OF THE PREMISES BEING DETERMINED A PUBLIC NUISANCE, INCLUDING THE POSSIBLE CLOSURE OF THE PREMISES.~~

~~§ 43-4. Notice and opportunity for hearing.~~

~~(a) *In general.*~~

~~Before issuing an order under this subtitle, the Commissioner shall give notice and an opportunity for a hearing to the owner and any operator of the premises and to any commercial tenant of the premises.~~

~~(b) *Contents of notice.*~~

~~The notice shall state:~~

~~(1) the date, place, and time of the hearing;~~

~~(2) the right of the persons receiving the notice to be heard and to be represented at the hearing; and~~

~~(3) the possible consequences of failure to appear, including the possible issuance of a default order directing the premises to be closed.~~

~~(c) *Service and posting of notice.*~~

~~(1) The notice shall be given by personal service or by certified or registered mail to the owner, operator, and commercial tenant, as their names and addresses:~~

~~(i) are recorded in the Land Records of Baltimore City;~~

~~(ii) appear in the registration statement filed under City Code Article 13, Subtitle 4 ("Registration of Non-Owner-Occupied Dwellings, etc."); or~~

~~(iii) are otherwise known or readily ascertainable.~~

~~(2) In addition, the notice shall be posted on the premises.~~

~~(D) *CDS AND CANNABIS OFFENSES.*~~

~~(1) UPON THE ISSUANCE OF A SECOND POLICE REPORT ALLEGING THAT A PREMISES IS BEING USED FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS, THE COMMISSIONER SHALL SET A HEARING TO OCCUR WITHIN 30 DAYS OF ISSUANCE OF THE REPORT.~~

~~(2) THE OWNER, OPERATOR, OR TENANT OF A PREMISES ALLEGED TO BE A PUBLIC NUISANCE FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS MAY SUBMIT A REQUEST IN THE FORM AND MANNER REQUIRED BY THE COMMISSIONER TO DELAY THE HEARING TO NO LATER THAN 45 DAYS FOLLOWING THE ISSUANCE OF THE SECOND POLICE REPORT.~~

~~**SECTION 2. AND BE IT FURTHER ORDAINED,** That the laws of Baltimore City read as follows:~~

~~**Article 19. Police Ordinances**~~

~~**Subtitle 43. Public Nuisances**~~

~~**§ 43-3. Nuisance abatement authorized.**~~

~~(a) *Commissioner's basic authority.*~~

~~(1) *IN GENERAL.*~~

~~On determining that a public nuisance exists, the Commissioner may:~~

~~(i) [(1)] order the discontinuance of the public nuisance in the premises where the public nuisance exists; or~~

~~(ii) [(2)] order the closing of the premises to the extent necessary to abate the nuisance.~~

~~(2) *COMMISSIONER SHALL REFER.*~~

~~FOR A PREMISES ALLEGED TO BE A PUBLIC NUISANCE FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS, THE COMMISSIONER SHALL REFER THE MATTER TO THE BOARD OF CONSUMER PROTECTION AND BUSINESS LICENSING, WHO SHALL SERVE AS THE BODY RESPONSIBLE FOR CONDUCTING A HEARING AND ISSUING AN ORDER TO ABATE THE NUISANCE, WHICH MAY INCLUDE ORDERING THE CLOSURE OF THE PREMISES.~~

~~(b) *Limitations.*~~

~~(1) Except as specified in paragraph (2) of this subsection, if the premises consists entirely of residential units or mixed residential and other use units, and the public nuisance has occurred solely within 1 or more residential units, abatement authority is restricted to the residential units in which the public nuisance has occurred, and does not extend to any other unit in the premises.~~

~~(2) The restrictions of paragraph (1) of this subsection do not apply to a public nuisance occurring in any:~~

~~(i) motel;~~

~~(ii) hotel; or~~

~~(iii) rooming house or rooming unit, as those terms are defined in the Zoning Code of Baltimore City.~~

~~§ 43-4. Notice and opportunity for hearing.~~

~~(a) *In general.*~~

~~Before issuing an order under this subtitle, the Commissioner [shall] SHALL:~~

~~(1) EXCEPT AS PROVIDED IN PARAGRAPH (2) OF THIS SUBSECTION, give notice and an opportunity for a hearing to the owner and any operator of the premises and to any commercial tenant of the [premises.] PREMISES; OR~~

~~(2) UPON THE ISSUANCE OF A SECOND POLICE REPORT ALLEGING THAT A PREMISES IS BEING USED FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS, REFER THE POLICE REPORTS TO THE BOARD OF CONSUMER PROTECTION AND BUSINESS LICENSING, WHO SHALL, PURSUANT TO PART V OF SUBTITLE 42 OF CITY CODE ARTICLE 1:~~

~~(I) COORDINATE WITH THE POLICE COMMISSIONER TO GIVE NOTICE AND AN OPPORTUNITY FOR A HEARING TO ANY OWNER, OPERATOR OR COMMERCIAL TENANT OF THE PREMISES;~~

~~(II) HOLD A HEARING;~~

~~(III) DETERMINE IF A PUBLIC NUISANCE EXISTS; AND~~

~~(IV) IF THE BOARD DETERMINES A PUBLIC NUISANCE EXISTS, ISSUE AN ORDER TO ABATE THE NUISANCE, WHICH MAY INCLUDE CLOSING THE PREMISES.~~

~~(b) *Contents of notice.*~~

~~The notice REQUIRED UNDER SUBSECTION (A)(1) OF THIS SECTION shall state:~~

~~(1) the date, place, and time of the hearing;~~

~~(2) the right of the persons receiving the notice to be heard and to be represented at the hearing; and~~

~~(3) the possible consequences of failure to appear, including the possible issuance of a default order directing the premises to be closed.~~

~~(c) *Service and posting of notice.*~~

~~(1) The notice REQUIRED UNDER SECTION (A)(1) OF THIS SECTION shall be given by personal service or by certified or registered mail to the owner, operator, and commercial tenant, as their names and addresses:~~

~~(i) are recorded in the Land Records of Baltimore City;~~

~~(ii) appear in the registration statement filed under City Code Article 13, Subtitle 4 ("Registration of Non-Owner-Occupied Dwellings, etc."); or~~

~~(iii) are otherwise known or readily ascertainable.~~

~~(2) In addition, the notice shall be posted on the premises.~~

~~[(d) *CDS and Cannabis offenses.*]~~

~~[(1) Upon the issuance of a second police report alleging that a premises is a public nuisance for activities related to controlled dangerous substances or cannabis, the Commissioner shall set a hearing to occur within 30 days of issuance of the report.~~

~~[(2) The owner, operator, or tenant of a premises alleged to be a public nuisance for activities related to controlled dangerous substances or cannabis may submit a request in the form and manner required bu the Commissioner, to delay the hearing to no later than 45 days following the issuance of the second police report.]~~

~~Article 1. Mayor, City Council, and Municipal Agencies~~

~~Subtitle 42. Department of Consumer Protection and Business Licensing~~

~~PART V. PUBLIC NUISANCES~~

~~§ 42-42. REFERRAL, NOTICE, AND OPPORTUNITY.~~

~~(A) *BOARD AS DESIGNEE.*~~

~~PURSUANT TO § 43-3 OF CITY CODE ARTICLE 19, THE BOARD SHALL SERVE AS THE POLICE COMMISSIONER'S DESIGNEE TO DETERMINE IF A PREMISES ALLEGED TO BE A PUBLIC NUISANCE FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS SHALL BE ORDERED CLOSED TO THE EXTENT NECESSARY TO ABATE THE NUISANCE.~~

~~(B) *POLICE COMMISSIONER TO REFER.*~~

~~PURSUANT TO CITY CODE ARTICLE 19 § 43-4(A)(2), UPON THE ISSUANCE OF A SECOND POLICE REPORT ALLEGING THAT A PREMISES IS BEING USED FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS, THE POLICE COMMISSIONER SHALL REFER THE MATTER TO THE BOARD.~~

~~(C) *SCHEDULING OF HEARING.*~~

~~UPON RECEIPT OF A REFERRAL UNDER SUBSECTION (B) OF THIS SECTION, THE BOARD SHALL:~~

~~(1) SET A HEARING TO OCCUR WITHIN 30 DAYS OF THE ISSUANCE OF THE SECOND POLICE REPORT, UNLESS AN EXTENSION IS REQUESTED AND GRANTED; AND~~

~~(2) PROVIDE NOTICE OF THE HEARING TO THE OWNER, OPERATOR, AND COMMERCIAL TENANTS OF THE PREMISES, AS APPLICABLE.~~

~~(D) *CONTENTS OF NOTICE.*~~

~~THE NOTICE SHALL STATE:~~

~~(1) THE DATE, PLACE, AND TIME OF THE HEARING;~~

~~(2) THE RIGHT OF THE PERSONS RECEIVING THE NOTICE TO BE HEARD AND TO BE REPRESENTED AT THE HEARING;~~

~~(3) THE RIGHT OF THE PERSONS RECEIVING THE NOTICE TO REQUEST A DELAY NO LATER THAN 45 DAYS FROM THE ISSUANCE OF THE SECOND POLICE REPORT, PROVIDED THE REQUEST IS SUBMITTED IN THE FORM AND MANNER REQUIRED BY THE BOARD; AND~~

~~(4) THE POSSIBLE CONSEQUENCES OF FAILURE TO APPEAR, INCLUDING THE POSSIBLE ISSUANCE OF A DEFAULT ORDER DIRECTING THE PREMISES TO BE CLOSED.~~

~~(E) *SERVICE AND POSTING OF NOTICE.*~~

~~(1) THE NOTICE SHALL BE GIVEN BY PERSONAL SERVICE OR BY CERTIFIED OR REGISTERED MAIL TO THE OWNER, OPERATOR, AND COMMERCIAL TENANT, AS THEIR NAMES AND ADDRESSES:~~

~~(I) ARE RECORDED IN THE LAND RECORDS OF BALTIMORE CITY;~~

~~(II) APPEAR IN THE REGISTRATION STATEMENT FILED UNDER CITY CODE ARTICLE 13, SUBTITLE 4 ("REGISTRATION OF NON-OWNER-OCCUPIED DWELLINGS, ETC."); OR~~

~~(III) ARE OTHERWISE KNOWN OR READILY ASCERTAINABLE.~~

~~(2) IN ADDITION, THE NOTICE SHALL BE POSTED ON THE PREMISES.~~

~~§ 42-43. EVIDENCE.~~

~~TWO REPORTS BY POLICE OFFICERS, WRITTEN IN THE REGULAR COURSE OF BUSINESS, OF A PREMISES HAVING BEEN USED FOR ACTIVITIES RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS, AS DESCRIBED IN § 43-1(M) OF CITY CODE ARTICLE 19, ARE PRIMA FACIE EVIDENCE THAT THE PREMISES ARE A PUBLIC NUISANCE.~~

~~§ 42-44. APPLICABLE STANDARDS.~~

~~(A) *PROOF OF KNOWLEDGE NOT REQUIRED.*~~

~~THE BOARD MAY ISSUE AN ORDER FOR APPROPRIATE RELIEF UNDER § 42-42(A) OF THIS SUBTITLE WITHOUT PROOF THAT AN OWNER, OPERATOR, OR TENANT KNEW OF THE EXISTENCE OF THE PUBLIC NUISANCE.~~

~~(B) *DISCONTINUANCE NOT A BAR TO RELIEF.*~~

~~EVIDENCE THAT THE NUISANCE HAS BEEN DISCONTINUED AT THE TIME NOTICE WAS PROVIDED OR AT THE TIME OF THE HEARING DOES NOT BAR THE COMMISSIONER FROM IMPOSING APPROPRIATE RELIEF UNDER § 42-42(A) OF THIS SUBTITLE.~~

~~§ 42-45. ISSUANCE AND ENFORCEMENT OF ORDER.~~

~~(A) *ISSUANCE OF ORDER.*~~

~~FOLLOWING THE HEARING, WITHIN 5 BUSINESS DAYS OF THE HEARING, THE BOARD SHALL:~~

~~(1) ON DETERMINING THAT A PUBLIC NUISANCE EXISTS, ISSUE A WRITTEN ORDER IN ACCORDANCE WITH § 42-42(A) OF THIS SUBTITLE AND ORDER APPROPRIATE RELIEF; OR~~

~~(2) ON DETERMINING THAT A PUBLIC NUISANCE DOES NOT EXIST, ISSUE A WRITTEN FINDING TO THAT EFFECT.~~

~~(B) *FINDINGS OF FACT.*~~

~~THE BOARD SHALL INCLUDE FINDINGS OF FACT WITH ANY ORDER ISSUED UNDER THIS SECTION.~~

~~(C) *POLICE DEPARTMENT.*~~

~~THE BALTIMORE POLICE DEPARTMENT SHALL INITIATE AN ABATEMENT ACTION, WHICH MAY INCLUDE POSTING THE ORDER AND CLOSING THE PREMISES, WITHIN 10 DAYS OF THE ISSUANCE OF AN ORDER BY THE BOARD TO ABATE A PUBLIC NUISANCE RELATED TO CONTROLLED DANGEROUS SUBSTANCES OR CANNABIS.~~

~~(D) *POSTING AND NOTICE OF ORDER.*~~

~~FOLLOWING THE HEARING PROCEDURE, AN ORDER ISSUED UNDER THIS SUBTITLE SHALL BE POSTED ON THE PREMISES AND NOTICE OF THE ORDER SHALL BE GIVEN TO THE PERSONS AND IN THE MANNER SET FORTH IN § 42-42(E) OF THIS SUBTITLE.~~

~~(E) *ENFORCEMENT; PERIOD OF CLOSING.*~~

~~(1) AFTER THE ORDER HAS BEEN POSTED, AS SET FORTH IN SUBSECTION (D) OF THIS SECTION, THE ORDER MAY BE ENFORCED ON WRITTEN DIRECTIVE OF THE BOARD.~~

~~(2) A CLOSING SHALL BE FOR THE PERIOD THAT THE BOARD REASONABLY MAY DIRECT, BUT IN NO EVENT MAY THE CLOSING BE FOR LONGER THAN 1 YEAR.~~

~~(F) *NATURE OF CLOSING.*~~

~~A CLOSING ORDERED BY THE BOARD UNDER THIS SUBTITLE IS NOT AN ACT OF POSSESSION, OWNERSHIP, OR CONTROL BY THE CITY OF BALTIMORE.~~

~~(G) *MODIFICATION.*~~

~~(1) THE BOARD MAY MODIFY OR RESCIND AN ORDER ISSUED UNDER THIS SUBTITLE IF:~~

~~(I) AN OWNER OR TENANT AFFECTED BY THE ORDER SUBMITS TO THE BOARD A WRITTEN REQUEST FOR MODIFICATION OR RESCISSION; AND~~

~~(II) A HEARING IS HELD ON THE REQUEST.~~

~~(2) AN OWNER OR TENANT SUBMITTING A REQUEST UNDER THIS SUBSECTION SHALL ATTACH TO THE REQUEST ANY DOCUMENTS OR OTHER EVIDENCE THAT THE OWNER OR TENANT WISHES THE BOARD TO CONSIDER IN RULING ON THE REQUEST.~~

~~(3) THE BOARD MAY GRANT THE REQUEST IF THE BOARD DETERMINES THAT THE NUISANCE HAS BEEN ABATED.~~

~~§ 42-46. RULES AND REGULATIONS.~~

~~THE DIRECTOR, IN CONSULTATION WITH THE POLICE COMMISSIONER, SHALL ADOPT RULES, REGULATIONS, AND HEARING PROCEDURES AS NECESSARY OR PROPER TO CARRY OUT THIS SUBTITLE.~~

~~§ 42-47. JUDICIAL AND APPELLATE REVIEW.~~

~~(A) *JUDICIAL REVIEW.*~~

~~ANY PERSON AGGRIEVED BY ANY ACT OF THE BOARD OR THE COMMISSIONER TAKEN UNDER THIS SUBTITLE MAY SEEK JUDICIAL REVIEW OF THAT ACT BY PETITION TO THE CIRCUIT COURT FOR BALTIMORE CITY IN ACCORDANCE WITH THE MARYLAND RULES OF PROCEDURE.~~

~~(B) *APPELLATE REVIEW.*~~

~~A PARTY TO THE JUDICIAL REVIEW MAY APPEAL THE COURT'S FINAL JUDGMENT TO THE COURT OF SPECIAL APPEALS IN ACCORDANCE WITH THE MARYLAND RULES OF PROCEDURE.~~

~~§ 42-48. PROHIBITED CONDUCT.~~

~~(A) *FAILURE TO OBEY ORDER.*~~

~~NO PERSON MAY:~~

~~(1) INTENTIONALLY DISOBEY ANY PROPER ORDER ISSUED BY THE BOARD UNDER THIS SUBTITLE; OR~~

~~(2) USE OR OCCUPY OR PERMIT ANY OTHER PERSON TO USE OR OCCUPY ANY PREMISES ORDERED CLOSED UNDER THIS SUBTITLE.~~

~~(B) *LIABILITY FOR UNAUTHORIZED OCCUPANCY.*~~

~~IF ANY PERSON USES OR OCCUPIES OR PERMITS ANY OTHER PERSON TO USE OR OCCUPY ANY PREMISES ORDERED CLOSED BY THE BOARD:~~

~~(1) THE COMMISSIONER MAY EXECUTE THE TERMS OF THE ORDER TO CLOSE THE PREMISES; AND~~

~~(2) THE PERSON IS LIABLE FOR ALL COSTS INCURRED BY THE COMMISSIONER IN EXECUTING THE TERMS OF THE ORDER TO CLOSE THE PREMISES.~~

~~**§ 42-49. PENALTIES.**~~

~~(A) *IN GENERAL.*~~

~~ANY PERSON WHO VIOLATES A PROVISION OF § 42-48(A) {"PROHIBITED CONDUCT: FAILURE TO OBEY ORDER"} IS SUBJECT TO A FINE OF NOT MORE THAN $500 OR TO IMPRISONMENT FOR NOT MORE THAN 90 DAYS OR TO BOTH FINE AND IMPRISONMENT.~~

~~(B) *EACH DAY A SEPARATE OFFENSE.*~~

~~EACH DAY A VIOLATION CONTINUES IS A SEPARATE OFFENSE.~~

~~**SECTION 3. AND BE IT FURTHER ORDAINED,** That Section 2 of this Ordinance takes effect on January 1, 2027.~~

~~**SECTION 4. AND BE IT FURTHER ORDAINED,** That, except as provided in Section 3 of this Ordinance, this Ordinance takes effect on the date it is enacted.~~

FOR the purpose of updating the applicability of public nuisance abatement to include certain additional offenses relating to a controlled dangerous substance and a cannabis product; referring certain public nuisance processes to the State Office of Administrative Hearings or the Environmental Control Board, or its successor; defining certain terms; generally relating to public nuisance abatement related to cannabis and controlled dangerous substances; and providing for the effective date of this Ordinance.

BY renumbering
Article 19 - Police Ordinances
Sections 43-3 to 43-6, 43-8, 43-9, 43-11, and 43-12, respectively
to be
Sections 43-2 to 43-5, 43-6, 43-7, 43-8, and 43-9, respectively
Baltimore City Code
(Edition 2000)

BY repealing and re-ordaining, with amendments
Article 19 - Police Ordinances
Sections 43-1, 43-2 to 43-5, 43-8, and 43-9
Baltimore City Code
(Edition 2000)

BY adding
Article 19 - Police Ordinances
Section 43-10
Baltimore City Code
(Edition 2000)

SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That Sections 43-3 to 43-6, 43-8, 43-9, 43-11, and 43-12, respectively, of Article 19 - Police Ordinances of the Baltimore City Code be renumbered to be Sections 43-2 to 43-5, 43-6, 43-7, 43-8, and 43-9, respectively.

SECTION 2. AND BE IT FURTHER ORDAINED, That the Laws of Baltimore City read as follows:

Baltimore City Code

Article 19. Police Ordinances

Subtitle 43. Public Nuisances

§ 43-1. Definitions.

(a) *In general.*

In this subtitle, the following terms have the meanings indicated.

(b) *Assignation.*

"Assignation" means an appointment or engagement for prostitution or any act in furtherance of the appointment or engagement.

(C) *CANNABIS PRODUCT.*

"CANNABIS PRODUCT" HAS THE MEANING STATED IN § 36-101, ET SEQ. OF THE STATE ALCOHOLIC BEVERAGES AND CANNABIS ARTICLE.

(D) [(c)] *Commissioner.*

"Commissioner" means the Police Commissioner of Baltimore City or the Commissioner's designee.

(E) [(d)] *Controlled dangerous [substance.] SUBSTANCE; CDS.*

"Controlled dangerous substance" OR "CDS" means a substance listed in Schedule I or Schedule II under State Criminal Law Article § 5-402 or § 5-403.

(F) [(e)] *Controlled paraphernalia.*

"Controlled paraphernalia" has the meaning stated in State Criminal Law Article § 5-101.

(G) [(f)] *Crime of violence.*

"Crime of violence" has the meaning stated in State Criminal Law Article § 14-101.

~~(H) *HEARING OFFICER.*~~

~~"HEARING OFFICER" MEANS THE INDIVIDUAL ASSIGNED BY OAH OR THE ENVIRONMENTAL CONTROL BOARD, OR ITS SUCCESSOR, TO CONDUCT A HEARING UNDER THIS SUBTITLE.~~

(H) ~~(I)~~ *OFFICE OF ADMINISTRATIVE HEARINGS; OAH.*

"OFFICE OF ADMINISTRATIVE HEARINGS" OR "OAH" MEANS THE STATE OF MARYLAND OFFICE OF ADMINISTRATIVE HEARINGS ESTABLISHED IN § 9-1602 OF THE STATE GOVERNMENT ARTICLE OF THE MARYLAND CODE.

(I) ~~(J)~~ [(g)] *Operator.*

"Operator" means any person who has charge, care, or control of a premises or structure.

(J) ~~(K)~~ [(h)] *Owner.*

"Owner" means the person in whose name a premises is recorded in the Land Records of Baltimore City.

(K) ~~(L)~~ [(i)] *Premises.*

"Premises" means all or any part of any land, building, or other structure.

(L) ~~(M)~~ [(j)] *Prostitution.*

"Prostitution" means the performance of a sexual act, sexual contact, or vaginal intercourse, as these terms are defined in State Criminal Law Article § 3-301, for hire.

(M) ~~(N)~~ [(k)] *Public nuisance.*

[(1)] "Public nuisance" means any premises that, on 2 or more separate occasions within a 24-month period, were used:

(1) [(i)] for prostitution, lewdness, or assignation;

(2) [(ii)] for illegal adult entertainment;

(3) [(iii)] by persons who assemble for the specific purpose of illegally administering a controlled dangerous substance;

(4) [(iv)] for the illegal manufacture or distribution of:

(I) [(A)] a controlled dangerous substance; [or]

(II) [(B)] controlled paraphernalia; OR

(III) A CANNABIS PRODUCT;

(5) [(v)]for the illegal storage or concealment of a [controlled dangerous substance or controlled paraphernalia] CONTROLLED DANGEROUS SUBSTANCE, CONTROLLED PARAPHERNALIA, OR A CANNABIS PRODUCT in sufficient quantity to reasonably indicate under all the circumstances an intent to manufacture, distribute, SELL, ADVERTISE FOR SALE, or dispense:

(I) [(A)] a controlled dangerous substance; [or]

(II) [(B)] controlled paraphernalia; OR

(III) A CANNABIS PRODUCT.

(6) [(vi)] for gambling;

(7) [(vii)] for storage or possession of stolen property;

(8) [(viii)] for storage or possession of unregistered firearms;

(9) [(ix)] for furtherance of a crime of violence;

(10) [(x)] by persons who engage in a crime of violence on or near the premises; or

(11) [(xi)] for criminal gang offenses prohibited under State Criminal Law Article 9, Subtitle 8.

[(2) Two reports by police officers, written in the regular course of business, of a premises' having been used for activities described in paragraph (1) of this subsection are prima facie evidence that the premises are a public nuisance.]

§ 43-2. [§ 43-3.] Nuisance abatement authorized.

(a) *Commissioner's [basic] authority.*

(1) *IN GENERAL.*

On determining that a public nuisance exists, the Commissioner may:

(I) [(1)] order the discontinuance of the public nuisance in the premises where the public nuisance exists; or

(II) [(2)] order the closing of the premises to the extent necessary to abate the [nuisance.] NUISANCE, FOR THE PROTECTION AND BETTERMENT OF THE PUBLIC HEALTH, SAFETY, AND WELFARE, AND NOT AS A PUNISHMENT OF ANY OWNER, OPERATOR, OR TENANT.

(2) *COMMISSIONER SHALL REFER.*

(I) *IN GENERAL.*

FOR A PREMISES ALLEGED TO BE A PUBLIC NUISANCE FOR REASONS RELATED TO ACTIVITIES INVOLVING A CONTROLLED DANGEROUS SUBSTANCE OR A CANNABIS PRODUCT WHERE THE REPORTED VIOLATIONS INVOLVE AN EMPLOYEE, OWNER, OR TENANT OF THE PREMISES, THE COMMISSIONER SHALL REFER THE MATTER TO AN ENTITY SPECIFIED IN SUBPARAGRAPH (II) OF THIS SUBSECTION, WHO SHALL SERVE AS THE BODY RESPONSIBLE FOR CONDUCTING AN INDEPENDENT HEARING AND ISSUING PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW.

(II) *ORDER OF REFERRAL.*

(A) IF A RELEVANT AGREEMENT BETWEEN THE CITY AND OAH EXISTS, THE COMMISSIONER SHALL REFER THE MATTER TO OAH.

(B) IF A RELEVANT AGREEMENT BETWEEN THE CITY AND OAH DOES NOT EXIST, OR OAH REFUSES TO ACCEPT A REFERRAL FOR ANY REASON, THE COMMISSIONER SHALL REFER THE MATTER TO THE ENVIRONMENTAL CONTROL BOARD OR ITS SUCCESSOR.

(III) *REFERRAL TO ENVIRONMENTAL CONTROL BOARD.*

THE COMMISSIONER AND THE ENVIRONMENTAL CONTROL BOARD OR ITS SUCCESSOR SHALL ESTABLISH AN AGREEMENT TO CARRY OUT THE PROVISIONS OF THIS SUBSECTION.

(IV) *CONTENTS OF REFERRAL.*

IN THAT REFERRAL REQUIRED UNDER THIS PARAGRAPH (2), THE COMMISSIONER SHALL REQUEST THE FOLLOWING:

(A) FOR THE ENTITY TO CONDUCT AN EVIDENTIARY HEARING ACCORDING TO THAT OFFICE'S RULES ON THE SUBJECT OF THE POLICE REPORTS AND THE ALLEGED PUBLIC NUISANCE; AND

(B) FOR THE ENTITY TO PRODUCE A PROPOSED ORDER ON THE MATTER.

(b) *Limitations.*

(1) Except as specified in paragraph (2) of this subsection, if the premises consists entirely of residential units or mixed residential and other use units, and the public nuisance has occurred solely within 1 or more residential units, abatement authority is restricted to the residential units in which the public nuisance has occurred, and does not extend to any other unit in the premises.

(2) The restrictions of paragraph (1) of this subsection do not apply to a public nuisance occurring in any:

(i) motel;

(ii) hotel; or

(iii) rooming house or rooming unit, as those terms are defined in the Zoning Code of Baltimore City.

§ 43-3. [§ 43-4.] Notice and opportunity for hearing.

(a) *In general.*

Before issuing an order under this subtitle, the Commissioner [shall] SHALL:

(1) EXCEPT AS PROVIDED IN PARAGRAPH (2) OF THIS SUBSECTION, give notice and an opportunity for a hearing to the owner and any operator of the premises and to any commercial tenant of the [premises.] PREMISES; OR

(2) UPON THE ISSUANCE OF A SECOND POLICE REPORT WHERE THE REPORTED VIOLATIONS INVOLVE AN EMPLOYEE, OWNER, OR TENANT OF THE PREMISES ENGAGED IN ACTIVITIES RELATED TO A CONTROLLED DANGEROUS SUBSTANCE OR A CANNABIS PRODUCT, AS DESCRIBED IN ~~§ 43–1(N)~~ *§ 43-1(M)* OF THIS SUBTITLE, REFER THE MATTER FOR A HEARING PURSUANT TO § 43-2 OF THIS SUBTITLE.

(b) *Contents of notice.*

The notice shall state:

(1) the date, place, and time of the hearing;

(2) the right of the persons receiving the notice to be heard and to be represented at the hearing; and

(3) the possible consequences of failure to appear, including the possible issuance of a default order directing the premises to be closed.

(c) *Service and posting of notice.*

(1) The notice shall be given by personal service or by certified or registered mail to the owner, operator, and commercial tenant, as their names and addresses:

(i) are recorded in the Land Records of Baltimore City;

(ii) appear in the registration statement filed under City Code Article 13, Subtitle 4 {"Registration of Non-Owner-Occupied Dwellings, etc."}; or

(iii) are otherwise known or readily ascertainable.

(2) In addition, the notice shall be posted on the premises.

§ 43-4. [§ 43-5.] Applicable standards.

(a) *Proof of knowledge not required.*

The Commissioner may order appropriate relief under [§ 43-3] § 43-2 of this subtitle without proof that an owner, operator, or tenant knew of the existence of the public nuisance.

(B) *PRIMA FACIE EVIDENCE.*

TWO REPORTS BY POLICE OFFICERS, WRITTEN IN THE REGULAR COURSE OF BUSINESS, OF A PREMISES HAVING BEEN USED FOR ACTIVITIES DESCRIBED IN ~~§ 43-1(N)~~ *§ 43-1(M)* OF THIS SUBTITLE, ARE PRIMA FACIE EVIDENCE THAT THE PREMISES ARE A PUBLIC NUISANCE.

(C) [(b)] *Discontinuance not a bar to relief.*

Evidence that the nuisance has been discontinued at the time notice was provided or at the time of the hearing does not bar the Commissioner from imposing appropriate relief under [§ 43-3] § 43-2 of this subtitle.

§ 43-5. [§ 43-6.] Issuance and enforcement of order.

(a) *Issuance of [order or finding.] FINAL ORDER.*

[Following the hearing procedure, the Commissioner shall:]

[(1) on determining that a public nuisance exists, issue a written order in accordance with § 43-3 of this subtitle; or

[(2) on determining that a public nuisance does not exist, issue a written finding to that effect.]

FOLLOWING THE HEARING PROCEDURE AND UPON RECEIPT OF THE PROPOSED FINDINGS OF FACT, CONCLUSIONS OF LAW, AND PROPOSED ~~ORDER FROM A HEARING OFFICER,~~ *ORDER* THE COMMISSIONER SHALL ISSUE A FINAL ORDER, TOGETHER WITH THE FINAL FINDINGS OF FACT AND CONCLUSIONS OF LAW.

(B) *POLICE DEPARTMENT.*

THE COMMISSIONER SHALL INITIATE AN ABATEMENT ACTION WITHIN 15 CALENDAR DAYS AFTER THE ISSUANCE OF A FINAL ORDER, WHICH MAY INCLUDE POSTING THE FINAL ORDER AND CLOSING THE PREMISES.

(C) [(b)] *Posting and notice of order.*

Following the hearing procedure, [an] A FINAL order issued BY THE COMMISSIONER under this subtitle shall be posted on the premises and notice of the FINAL order shall be given to the persons and in the manner set forth in [§ 43-4] § 43-3 of this subtitle.

(D) [(c)] *Enforcement; period of closing.*

(1) After the FINAL order has been posted, as set forth in subsection [(b)] (C) of this section, the FINAL order may be enforced on written directive of the Commissioner.

(2) A closing shall be for the period [that the Commissioner reasonably may direct,] STATED IN THE FINAL ORDER, but in no event may the closing be for longer than 1 year.

(3) THE PERIOD OF CLOSING IS NOT PUNITIVE AND IS IMPOSED SOLELY FOR THE PROTECTION OF THE PUBLIC HEALTH, SAFETY, AND WELFARE.

(E) [(d)] *Nature of closing.*

A closing ordered by the Commissioner under this subtitle is not an act of possession, ownership, or control by the City of Baltimore.

(F) [(e)] *Modification.*

(1) *IN GENERAL.*

The Commissioner may modify or rescind an order issued under this subtitle IF:

(i) an owner or tenant affected by the order submits to the Commissioner a written request for modification or rescission; and

(ii) a hearing is held on the request.

(2) *FORM OF REQUEST FOR MODIFICATION.*

An owner or tenant submitting a request under this subsection shall attach to the request any documents or other evidence that the owner or tenant wishes the Commissioner to consider in ruling on the request.

(3) *COMMISSIONER'S AUTHORITY.*

(I) The Commissioner may grant the request if the Commissioner determines that the nuisance has been abated.

(II) THE COMMISSIONER SHALL LIMIT CONSIDERATION OF ANY REQUEST PRESENTED UNDER THIS SUBSECTION TO 1 REQUEST EVERY 60 DAYS.

§ 43-6. [§ 43-8.] Rules and regulations.

(a) *Commissioner to adopt.*

The Commissioner shall adopt rules, regulations, and hearing procedures as necessary or proper to carry out this subtitle.

(b) *Filing with Legislative Reference.*

A copy of all rules, regulations, and procedures must be filed with the Department of Legislative Reference before they take effect.

§ 43-7. [§ 43-9.] Judicial and appellate review.

(a) *Judicial review.*

Any person aggrieved by any act of the Commissioner taken under this subtitle may seek judicial review of that act by petition to the Circuit Court for Baltimore City in accordance with the Maryland Rules of Procedure.

(b) *Appellate review.*

A party to the judicial review may appeal the court's final judgment to the Court of Special Appeals in accordance with the Maryland Rules of Procedure.

§ 43-8. [§ 43-11] Prohibited conduct.

(a) *Destruction, etc., of posted order.*

No person may destroy, remove, or deface an order posted by the Commissioner under this subtitle.

(b) *Failure to obey order.*

No person may:

(1) intentionally disobey any proper order issued by the Commissioner under this subtitle; or

(2) use or occupy or permit any other person to use or occupy any premises ordered closed under this subtitle.

(c) *Liability for unauthorized occupancy.*

If any person uses or occupies or permits any other person to use or occupy any premises ordered closed by the Commissioner:

(1) the Commissioner may execute the terms of the order to close the premises; and

(2) the person is liable for all costs incurred by the Commissioner in executing the terms of the order to close the premises.

§ 43-9. [§ 43-12.] Penalties.

(a) *In general.*

Any person who violates a provision of [§ 43-11] § 43-8 is guilty of a misdemeanor and, on conviction, is subject to the following penalties:

(1) for a violation of [§ 43-11(a)] § 43-8(A) {"Prohibited conduct: Destruction, etc., of posted order"}, the offender is subject to a fine of not more than $500; and

(2) for a violation of [§ 43-11(b)] § 43-8(B) {"Prohibited conduct: Failure to obey order"}, the offender is subject to a fine of not more than $500 or to imprisonment for not more than 90 days or to both fine and imprisonment.

(b) *Each day a separate offense.*

Each day a violation continues is a separate offense.

§ 43-10. REPORTING REQUIREMENT.

ON OR BEFORE APRIL 1 AND ON OR BEFORE OCTOBER 1 OF EACH YEAR, THE COMMISSIONER SHALL SUBMIT A REPORT TO THE MAYOR AND CITY COUNCIL DETAILING THE FOLLOWING:

(1) THE NUMBER OF COMPLAINTS RECEIVED ALLEGING A PUBLIC NUISANCE AS DEFINED IN ~~§ 43-1(N)~~ *§ 43-1(M)* OF THIS SUBTITLE;

(2) THE NUMBER OF CASES THAT RECEIVED REVIEW BY LAWYERS FOR THE CITY ACROSS ALL AGENCIES;

(3) THE NUMBER OF CASES REFERRED TO OAH OR THE ENVIRONMENTAL CONTROL BOARD;

(4) THE NUMBER OF FINAL ORDERS ISSUED REQUIRING CLOSURE OF A BUSINESS;

(5) THE AVERAGE CLOSURE TIME;

(6) THE SHORTEST CLOSURE TIME;

(7) THE LONGEST CLOSURE TIME;

(8) THE MOST EFFECTIVE METHOD OF ABATEMENT, AND WHY; AND

(9) THE NUMBER OF CASES APPEALED TO THE CIRCUIT COURT, AND THE OUTCOME IN EACH INSTANCE.

SECTION 3. AND BE IT FURTHER ORDAINED, That this Ordinance takes effect on the date it is enacted.

Council Bill 26-0193

Certified as duly passed this 28th day of September, 2026

President, Baltimore City Council

Certified as duly delivered to His Honor, the Mayor,

this 30th day of September, 2026

Chief Clerk

Approved this 15th day of October, 2026

Mayor, Baltimore City

Approved for Form and Legal Sufficiency.

this 30th day of September, 2026

Chief Solicitor

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